



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

December 16, 2009

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Thomas Lee**
Tax Registry No. 917863
Military Extended Leave Desk
Disciplinary Case No. 83159/07

The above named member of the service appeared before Assistant Deputy Commissioner David S. Weisel on August 12, 2009 and was charged with the following:

DISCIPLINARY CASE NO. 83159/07

1. Said Police Officer Thomas Lee, while assigned to the Manhattan Court Section, on or about and between July 3, 2007 through July 17, 2007, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said Police Officer did wrongfully ingest a controlled substance, to wit: Anabolic Steroid Nandrolone, without police necessity or authority to do so.

P.G. 203-10, Page 1, Paragraph 5

PROHIBITED CONDUCT

2. Said Police Officer Thomas Lee, assigned to the Manhattan Court Section, on or about and between July 3, 2007 through July 17, 2007, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said Police Officer did wrongfully possess a controlled substance, to wit: Anabolic Steroid Nandrolone, without police necessity or authority to do so.

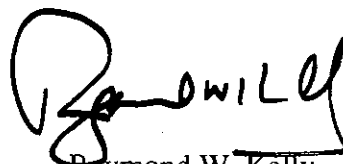
P.G. 203-10, Page 1, Paragraph 5

PROHIBITED CONDUCT

In a Memorandum dated November 16, 2009, Assistant Deputy Commissioner Weisel accepted the Respondent's PLEADING GUILTY to Specification Nos. 1 and 2. Having read the Memorandum and analyzed the facts of this instant matter, I approve the findings, but disapprove the penalty.

In addition to the recommended penalty of 60 days already served on suspension, plus One-Year Dismissal Probation, Respondent Lee is to also be subject to two random drug screening tests including but not limited to anabolic steroids during said period of Dismissal Probation.

It is therefore directed that a post-trial negotiation agreement regarding such be immediately implemented with the Respondent.


Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

November 16, 2009

MEMORANDUM FOR: Police Commissioner

RE: Police Officer Thomas Lee
Tax Registry No. 917863
Military and Extended Leave Desk
Disciplinary Case No. 83159/07

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P.G. 203-10 Page 1, Paragraph 5 – PROHIBITED CONDUCT

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P.G. 203-10 Page 1, Paragraph 5 – PROHIBITED CONDUCT

The Department was represented by Lisa Bland, Esq., Department Advocate's Office, and the Respondent was represented by Stuart London, Esq.

The Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

COURTESY • PROFESSIONALISM • RESPECT

DECISION

The Respondent, having pleaded Guilty, is found Guilty.

SUMMARY OF EVIDENCE IN MITIGATION

The Respondent testified on his own behalf.

The Respondent

The Respondent testified that he was 34 years old. He had been a member of the Department for 13 years. He was married and had three children.

The Respondent testified that in November 2006, he was feeling fatigued. He had no energy or sex drive. He went to his physician, Dr. Paffaf, who said the Respondent's problem was that he was overweight. The Respondent noted that he was 35 to 40 pounds overweight and was using energy drinks.

The Respondent testified that he looked on the Internet for "different human growth hormones." He came across the website for the Human Health Rejuvenation Center (HHRC). The center treated fatigue, "excessive fat," low sex drive, low testosterone, and low amounts of IGF, the "growth factor in your body."

The Respondent testified that he called the HHRC toll-free number and spoke to the "clinical advisor." The Respondent asked the advisor "how they came to these different issues as opposed to being tired, excessive body weight." The advisor asked for the Respondent's "pedigree information." The Respondent said he was an NYPD officer and, "The only thing I do is play hockey." The advisor told him to go to Quest Diagnostics, where a blood test was performed and "medical health questionnaire" filled out.

The Respondent testified that the questionnaire was sent "back to the doctor," who also reviewed the Respondent's blood work. The doctor told the Respondent he was "a prime

example for the different programs that they have . . . six months to eight months of different treatments with Nandrolone and testosterone.” The Respondent “avail[ed]” himself of a six-month program, and HHRC prescribed testosterone cypionate¹ and Nandrolone. One or two weeks passed between the first and second times he spoke to HHRC on the phone.

The Respondent asserted that he was unaware at the time that Nandrolone was a “banned anabolic steroid.” He admitted, however, that HHRC told him it was a steroid. HHRC told him that the Nandrolone would help with his joint pain. He took the prescriptions for six to eight months, and they helped with his fatigue. He injected them into his right buttock. The Respondent admitted that he did not meet with Paffaf about these prescriptions.

The Respondent contended that he stopped taking the Nandrolone and testosterone cypionate in February or March of 2007. He testified it was on July 4, 2007, that he realized there was “a problem with taking them.” He stated that he had “an incident . . . a verbal dispute” with his wife. He and his wife were fighting over “various things,” and the fact that he had been drinking started it. The police arrived, including the patrol sergeant and duty captain. He was taken to the local precinct station house. The Internal Affairs Bureau then took him to Lefrak City “for a test.”²

The Respondent testified that in, he believed, February 2008, he saw a Dr. Gordon, who specialized in testosterone deficiency. He found Gordon through a friend of his wife. Gordon told the Respondent that the HHRC treated him “fifty percent correctly and fifty percent . . . incorrectly.” The doctor told him that the “human growth hormone Nandrolone” did not help his fatigue.

¹ Although the record only reads “[c]ypionate,” the Court recalls that the Respondent mentioned he was prescribed “testosterone cypionate.” A cypionate is an injectable form of the testosterone.

² The Department alleged in its opening statement that on June 30, 2007, the Respondent’s wife found several syringes, and that the dispute on the 4th of July was related to this discovery.

The Respondent testified that he was “physically seeing” Gordon currently, and was taking testosterone under Gordon’s direction. He no longer went to Paffaf.

The Respondent denied that at the time he took the “anabolic steroids,” he was aware this was against Department policy.

On cross-examination, the Respondent agreed that Paffaf had been his physician for “[p]robably” over twenty years. Bloodwork was submitted to Paffaf, and he did “physicals.” Paffaf advised the Respondent only to lose weight. The Respondent agreed that he had three children and a full-time job.

The Respondent admitted that it was August 2006 that he went on the Internet to look for human growth hormones. He later stated that what he was doing was “putting in symptoms of fatigue and a lot of stuff popped up about human growth hormones.” He admitted that he knew what steroids were, and also looked them up online.

The Respondent testified that the treatments he found had the side effects listed. He did this Internet research for two to six weeks before contacting HHRC. He did not recall seeing an advisory on the website to have a physical examination before accepting prescriptions from HHRC.

The Respondent conceded that he did not speak to or see an HHRC physician, nor did he speak to Paffaf about the steroid treatment. He admitted that the only medical documentation sent to HHRC was his Quest Diagnostics work. The Respondent admitted that he had been to the Medical Division before but did not inquire of them “that you were prescribed medication although you had not physically seen a doctor.” He conceded that he did not check to see if the HHRC medications were covered by his Department health insurance.

The Respondent agreed that HHRC prescribed an “anabolic steroid human growth hormone in addition to Clomiphene, which is a female fertility drug.” The Respondent conceded that he did not “review any of those” before taking them.

The Respondent testified that he is aware that Nandrolone is a controlled substance. He received about three shipments from HHRC, once in December 2006 and another in February or March of 2007. He believed he paid about \$2,800 for the treatment.

On examination from the Court, the Respondent admitted that “[s]ometimes” he would go home after his 4x12 tour. Occasionally he would go out after work. The only exercise he was getting was playing hockey two to three times a week. He claimed that he knew his fatigue was due to something more than his weight because his weight had always fluctuated. He tried, after the visit with Paffaf, to exercise and eat healthier, but this did not work.

The Respondent denied that he went onto the Internet with an eye toward getting steroids. He denied knowing how HHRC was going to treat him. He denied having any negative side effects associated with steroids after taking the Nandrolone.

The Respondent asserted that Gordon told him that about half of the medical field will test for testosterone deficiency. Gordon, the Respondent claimed, said that if a deficiency is found, “they have to, by law, treat you,” and many doctors are opposed to testosterone treatment.

PENALTY

In order to determine an appropriate penalty, the Respondent’s service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). The Respondent was appointed to the Department on July 18, 1996. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found Guilty, after pleading Guilty and testifying in mitigation of the penalty, of possessing and ingesting Nandrolone, an anabolic steroid and a controlled substance. The Respondent testified that his fatigue was a genuine medical condition for which he sought treatment. He pointed out that he was currently undergoing testosterone treatments by

a physician, and argued that it was only the Nandrolone that was improper. Nevertheless, the Respondent sought treatment over the Internet from someplace called the Human Health Rejuvenation Center and did not use health insurance to pay for what came to about \$2,800 in costs for the treatments. He knew that Nandrolone was a steroid and, at least by the time of trial, knew that it was a controlled substance.

The Department argued that the penalty should be termination. It conceded that in other cases involving anabolic steroids or human growth hormone, it has offered a recommended penalty of the forfeiture of 30 days of pay plus placement on dismissal probation for one year. Many members have received this disposition. See, e.g., *Case No. 84823/09*, signed Aug. 12, 2009 (45 vacation days and one year dismissal probation; member also impeded the investigation by denying that he ever recommended anybody to the doctor who provided him with the steroids); *Case No. 84130/08*, signed Dec. 9, 2008 (30 vacation days and one year dismissal probation); *Case No. 84157/08*, signed Dec. 9, 2008 (same); *Case No. 83475/07*, signed Oct. 24, 2008 (30 suspension days already served plus additional 15 vacation days and one year probation); *Case No. 83960/08*, signed Oct. 24, 2008 (30 vacation days); *Case No. 83474/07*, signed Aug. 19, 2008 (30 suspension days already served and one year probation); *Case No. 83473/07*, signed July 16, 2008 (same); *Case No. 83476/07*, signed July 16, 2008 (same); *Case No. 83479/07*, signed July 16, 2008 (same); *Case No. 83740/08*, signed July 16, 2008 (30 vacation days and one year probation); *Case No. 83741/07*, signed July 16, 2008 (same). It suggested that the difference between those cases and the instant matter is that in the prior cases, the members were actually seen by a physician, whereas the Respondent got his prescriptions through the Internet and never saw a physician to get them.

The Court has viewed the instant matter in the context of these recent cases, and the Department has failed to convince it that the Respondent should be treated differently. The Respondent, like the other members, is charged with “wrongfully” using steroids. The fact that

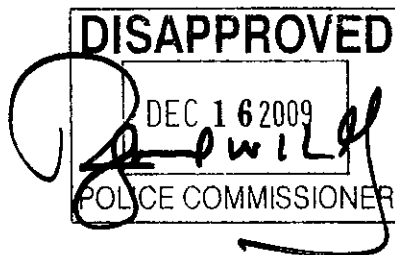
the other members may have established a physician-patient relationship under New York law or Drug Enforcement Administration policy (see Personnel Bureau Memorandum 23-2008, dated Mar. 26, 2008, ¶¶ 2, 7) did not prevent the Department from bringing charges against them. The Department has not explained why that constituted so great a mitigation of their misconduct to justify a penalty of 30 days and dismissal probation, while on the other hand recommending termination for this Respondent.

The Respondent's attorney suggested a penalty of dismissal probation and 60 vacation days. Along those lines, the Court recommends that the Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Section 14-115 (d) of the Administrative Code of the City of New York, during which time he is to remain on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. The Court further recommends that the Respondent forfeit 60 days already served on suspension.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner – Trials



POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER THOMAS LEE
TAX REGISTRY NO. 917863
DISCIPLINARY CASE NO. 83159/07

On the last three performance evaluations contained in his file, the Respondent received ratings of 3.5, 4.5 and 3.0, in 2005 through 2007, respectively. He has received two medals for Excellent Police Duty.

[REDACTED]
[REDACTED] He has no prior formal disciplinary history.

For your consideration.



David S. Weisel
Assistant Deputy Commissioner – Trials